

Opinion of the Court

from the prevailing framework in three important ways. First, the *Passman* Court concluded that a *Bivens* action must be available if there is “no effective means other than the judiciary to vindicate” the purported Fifth Amendment right. 442 U. S., at 243; see also *Carlson*, 446 U. S., at 18–19 (Congress can foreclose *Bivens* relief by “provid[ing] an alternative remedy which it explicitly declared to be a *substitute* for recovery directly under the Constitution and viewed as equally effective”). Since then, however, we have explained that the absence of relief “does not by any means necessarily imply that courts should award money damages.” *Schweiker*, 487 U. S., at 421. Second, *Passman* indicated that a damages remedy is appropriate unless Congress “explicit[ly]” declares that a claimant “may not recover money damages.” 442 U. S., at 246–247 (internal quotation marks omitted; emphasis deleted). Now, though, we defer to “congressional inaction” if “the design of a Government program suggests that Congress has provided what it considers adequate remedial mechanisms.” *Schweiker*, 487 U. S., at 423; see also *Ziglar*, 582 U. S., at 137. Third, when assessing the “special factors,” *Passman* asked whether a court is competent to calculate damages “without difficult questions of valuation or causation.” 442 U. S., at 245. But today, we do not ask whether a court can determine a damages amount. Rather, we ask whether “there are sound reasons to think Congress might doubt the efficacy or necessity of a damages remedy” at all. *Ziglar*, 582 U. S., at 137.

In short, as we explained in *Ziglar*, a plaintiff cannot justify a *Bivens* extension based on “parallel circumstances” with *Bivens*, *Passman*, or *Carlson* unless he also satisfies the “analytic framework” prescribed by the last four decades of intervening case law. 582 U. S., at 139. Boule has failed to do so.

IV

Since it was decided, *Bivens* has had no shortage of detractors. See, e. g., *Bivens*, 403 U. S., at 411 (Burger, C. J., dissenting); *id.*, at 427 (Black, J., dissenting); *id.*, at 430